

House File 389

H-1128

1 Amend House File 389 as follows:

2 1. By striking everything after the enacting clause and
3 inserting:

4 <DIVISION I

5 STUDENT ABUSE INVOLVING A SCHOOL EMPLOYEE — DEPARTMENT OF
6 HEALTH AND HUMAN SERVICES INVESTIGATIONS

7 Section 1. NEW SECTION. 232E.1 Definitions.

8 As used in this chapter, unless the context otherwise
9 requires:

10 1. "*Board of educational examiners*" means the board created
11 in section 256.146.

12 2. "*Department*" means the department of health and human
13 services.

14 3. "*Investigation*" means the process by which the department
15 responds to all accepted reports of alleged student abuse.

16 4. "*Nonpublic school*" means the same as defined in section
17 280.2.

18 5. "*Public school*" means the same as defined in section
19 280.2.

20 6. "*Public school district*" means a public school district
21 as described in chapter 274, and includes a charter school
22 under chapter 256E, or a charter school or an innovation zone
23 school under chapter 256F.

24 7. "*School employee*" means any of the following:

25 a. A person employed by a public school or a nonpublic
26 school.

27 b. A vendor, or an employee of a vendor, that provides goods
28 or services to a public school or a nonpublic school.

29 c. An agent, or an employee of an agent, of a public school
30 or a nonpublic school.

31 d. A volunteer under the direction and control of any of the
32 following:

33 (1) The board of directors or any administrator of a public
34 school district.

35 (2) The board or authorities in control of a nonpublic

1 school.

2 (3) The board of directors or administrator of an agency
3 called upon by a school official to provide services to
4 students in an educational capacity.

5 8. "*Student*" means a person enrolled in a public school,
6 a nonpublic school, or a prekindergarten program in a public
7 school or a nonpublic school.

8 9. "*Student abuse*" means any of the following which occur on
9 school grounds during school time, or on or at a school-related
10 curricular or extracurricular activity:

11 a. Any nonaccidental physical injury, or an injury which
12 does not match the history provided for how the injury
13 occurred, suffered by a student as the result of an act or
14 omission of a school employee, that is not otherwise excluded
15 by section 280.21, subsection 2.

16 b. The commission of a sexual offense with or to a child
17 or minor student pursuant to chapter 709, section 726.2, or
18 section 728.12, subsection 1, as a result of an act or omission
19 of a school employee.

20 c. An act or omission of a school employee which allows,
21 permits, or encourages a child or minor student to engage in an
22 act prohibited under section 725.1.

23 Sec. 2. NEW SECTION. 232E.2 Investigation of alleged
24 student abuse by school employees — rules.

25 1. The department shall administer this chapter to provide
26 for the investigation of reports of alleged student abuse by
27 school employees as specified in this chapter.

28 2. a. If, during the child abuse intake process under
29 chapter 232, subchapter 3, part 2, the department receives
30 a report from an identifiable source and the department
31 determines the report constitutes an allegation of student
32 abuse involving a school employee, the department shall notify
33 the board of directors of the public school district or the
34 authorities in charge of the nonpublic school associated with
35 the school employee, and the board of educational examiners, of

1 the determination.

2 *b.* Upon notification under paragraph "a", the board of
3 directors of the public school district or the authorities in
4 charge of the nonpublic school shall place the school employee
5 on administrative leave and shall prohibit the school employee
6 from entering school property until the investigation is
7 completed.

8 3. If the department determines the alleged student abuse
9 constitutes a criminal act, the department shall do all of the
10 following:

11 *a.* Immediately refer the matter to, and cooperate in the
12 investigation with, the appropriate law enforcement agency.

13 *b.* Notify the board of directors of the public school
14 district, or the authorities in charge of the nonpublic school,
15 associated with the school employee of the referral under
16 paragraph "a".

17 *c.* If the school employee is licensed, certified, or
18 authorized by the board of educational examiners, or holds
19 an active statement of recognition issued by the board of
20 educational examiners, notify the board of educational
21 examiners of the referral under paragraph "a".

22 4. Following receipt of a report of alleged student abuse,
23 the department shall do all of the following:

24 *a.* Commence an investigation within twenty-four hours of
25 receipt of the report.

26 *b.* Complete the investigation within thirty business days of
27 receipt of the report.

28 5. Upon completion of an investigation, the department
29 shall submit a written investigation report to all of the
30 following:

31 *a.* The board of directors of the public school district, or
32 the authorities in charge of the nonpublic school, associated
33 with the school employee subject to the investigation.

34 *b.* The board of educational examiners if the school
35 employee subject to the investigation is licensed, certified,

1 or authorized by the board of educational examiners, or holds
2 an active statement of recognition issued by the board of
3 educational examiners.

4 6. The department shall adopt rules pursuant to chapter
5 17A, in consultation with the department of education, to
6 administer this chapter. Rules adopted by the department shall
7 include rules regarding the intake and investigation processes,
8 investigation reports, case and investigation record retention
9 and dissemination, and case disposition.

10 7. The department shall maintain information and data
11 regarding student abuse reports, investigations, and
12 dispositions under this chapter separately from information
13 and data regarding child abuse reports, assessments, and
14 dispositions under chapter 232.

15 DIVISION II

16 STUDENT ABUSE INVOLVING A SCHOOL EMPLOYEE — DEPARTMENT OF 17 EDUCATION

18 Sec. 3. Section 280.17, Code 2025, is amended by striking
19 the section and inserting in lieu thereof the following:

20 **280.17 Student abuse investigations.**

21 1. The board of directors of a public school district and
22 the authorities in charge of a nonpublic school shall comply
23 with chapter 232E, and shall cooperate with the department of
24 health and human services during an investigation commenced
25 under chapter 232E.

26 2. The department of education, in consultation with the
27 department of health and human services, shall adopt rules
28 pursuant to chapter 17A, and a model policy, for the handling
29 of investigations pursuant to chapter 232E.

30 Sec. 4. Section 321.375, subsection 3, paragraph d, Code
31 2025, is amended to read as follows:

32 d. The commission of or conviction for a public offense as
33 defined by the Iowa criminal code, if the offense is relevant
34 to and affects driving ability, or if the offense includes
35 sexual involvement with a minor student with the intent to

1 commit acts and practices proscribed under sections 709.2
2 through 709.4, [section 709.8](#), and [sections 725.1 through 725.3](#),
3 ~~or is a violation of the rules of the department of education~~
4 ~~adopted to implement section 280.17~~ student abuse as defined
5 in section 232E.1.>

6 2. Title page, by striking lines 1 and 2 and inserting <An
7 Act relating to student abuse by school employees.>

BODEN of Warren